

Day-31 Dismissal Order

Timely invocation

On July 8, 2025, the court considers the respondent's invocation of the petition deadline. The Board entered the final order on January 13, and the petition was received February 13. Excluding the order date, February 12 was day thirty and February 13 was day thirty-one. After *Riley v. Bondi* issued, the court directed the institutional respondent to state its position by July 7. The respondent filed its invocation motion on July 2, and the response period has now closed.

Section 1252(b)(1) is a nonjurisdictional claims-processing rule, but Riley does not make a timely party invocation optional. The respondent expressly invoked the rule within the period set by this court. No later agency order, tolling event, extension, reopening, alternate receipt date, or waiver appears in the papers. The court therefore enforces the statutory deadline on the undisputed chronology.

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Disposition

The institutional respondent's motion is granted, and the petition is dismissed under Section 1252(b)(1). Dismissal follows timely invocation of a mandatory claims-processing rule. It is not entered for lack of subject-matter jurisdiction, and the court does not rely on a sua sponte objection. The June 27 show-cause order is discharged by this disposition.

The court does not reach whether the agency properly aggregated the asserted risk sources, applied the official-acquiescence standard, considered the evidence meaningfully, or transmitted a complete review record. It makes no finding about CAT eligibility or the truth of any declaration. The Board order remains undisturbed because the petition is dismissed on filing-time grounds, not because the court approves the agency's reasoning.

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Closure and service

The clerk shall terminate further record and briefing administration in this docket and serve the order on both parties on July 8, 2025. No agency correction, principal brief, argument calendar, merits opinion, or remand judgment will be entered in this dismissed proceeding absent a later order authorized by law. Existing papers remain retained as the procedural record supporting dismissal.

Any rehearing request must comply with the rules measured from this dismissal order and cannot be inferred from a filing in another proceeding. This order addresses only the February 13 petition and the respondent's July 2 invocation. It does not adjudicate another petition or filing and carries no determination on CAT eligibility, record composition, or agency reasoning beyond the dismissal stated for this docket.